

Kusum Mishra v. State of U.P.

Allahabad High Court · Division Bench · 5 December 2016 · Writ-C No. 57182 of 2016 · **Writ disposed; bill-correction representation treated as cl. 6.5; EE to decide in four weeks.**

HEADNOTE

A consumer's representation seeking correction of an electricity bill may be treated as an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005, with the Executive Engineer directed to pass an appropriate order within a fixed time, the High Court not deciding the bill on merits.

FACTUAL SUMMARY

Kusum Mishra filed a writ petition in the Allahabad High Court against an electricity bill, relying on a representation already made for its correction. The Division Bench did not examine the bill on merits. It treated the representation as an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005, directed the Executive Engineer to pass an appropriate order within four weeks of presentation of a certified copy of the order, and disposed of the writ petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to Executive Engineer

HOLDING

A representation seeking correction of an electricity bill is to be treated as an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and the Executive Engineer is to pass an appropriate order thereon within the time fixed by the Court. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A consumer's representation seeking correction of an electricity bill may be treated as an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005, with the Executive Engineer directed to pass an appropriate order within a fixed time, the High Court not deciding the bill on merits.

¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE IMPUGNED ELECTRICITY BILL

Merits of the bill-correction claim were left to the Executive Engineer under Clause 6.5. ¶ 1